

Government Code section 945.6 states that a suit against a public entity on a cause of action for which government claim presentation is required must be commenced within six months of written notice of the claims presentation board's action on the claim or within two years of the accrual of the cause of action if no written notice is given. Government Code section 950.2 provides that an action against a public employee for injury occurring from acts or omissions in the scope of his employment is barred if an action against the employing entity would be barred, meaning that section 945.6's limitations apply to Plaintiff's claims (for injury from acts of public employees) against Defendants (the public employees).

The court takes judicial notice of Defendants' proffered materials, comprising the record of Plaintiff's government claim form submitted July 24, 2022, under Evidence Code section 452, subdivision (c) as records of the state executive. The record of Plaintiff's government claim form shows a facial time bar for Plaintiff's complaint. Plaintiff's statute of limitations for this action, where he did not receive written notice from the claims board regarding his claim, ran on May 28, 2024. However, Plaintiff's original complaint in this action was filed on October 8, 2024.

Defendants' unopposed demurrer is sustained without leave to amend.

ANTONIO CONTRERAS MORA vs. CITY OF FAIRFIELD; ET AL
Case No. CU24-08766
(CONSOLIDATED WITH)
PONCE-NUNEZ vs. CITY OF FAIRFIELD; ET AL.
Case No. CU24-08768

Demurrer by Defendant STATE OF CALIFORNIA (CALTRANS) to Plaintiffs' Second Amended Complaint

TENTATIVE RULING

Liability against a public entity such as CALTRANS must be based on statute, not common law. Government Code §815(a); Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.

Government Code §830(a) defines "dangerous condition" as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used."

Government Code §835 confirms that a public entity can be held liable for a dangerous condition of public property caused by a negligent act or omission of an employee of that public entity.

There must be a physical deficiency in the property that proximately caused the injury, even if a third party's negligence also contributed to its occurrence. Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347-1348.

Government Code §835.4(a) excuses a public entity from liability for a dangerous condition of public property if the act or omission that created the dangerous condition was reasonable. See also Van Kempen v. Hayward Area Park & Recreation District (1972) 23 Cal.App.3d 822 [actions of park employees found reasonable to negate possibility of liability under dangerous condition of public property cause of action].

Government Code §840.2 also makes liable the public employee whose actions proximately caused the dangerous condition if that risk was reasonably foreseeable, and the employee had the authority and funds and other means immediately available to take alternative action which would not have created the dangerous condition.

The dangerous condition of public property basis for liability and defenses thereto cannot be subverted by a plaintiff pleading a negligence cause of action.

In structuring Government Code section 835 to define the circumstances in which a public entity properly may be held liable for an injury caused by a dangerous condition of public property, the Legislature took into account the special policy considerations affecting public entities in their development and control of public property and made a variety of policy judgments as to when a public entity should or should not be liable in monetary damages for injuries that may occur on public property. These policy judgments would be undermined if an injured person could ignore the limitations embodied in Government Code section 835 and invoke the very general provisions of section 1714 of the Civil Code to impose liability on a public entity in circumstances in which such liability would not be permitted under section 835. Accordingly, we conclude that in determining the public entities' direct liability, we must evaluate plaintiffs' claim under the provisions of Government Code section 835 alone. Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1132.

The court therefore sustains without leave to amend CALTRANS' demurrer to the 2nd cause of action for (general) negligence asserted in the second amended complaint.

Per CRC 3.1320(j)(1), CALTRANS answer to the remaining 1st cause of action alleged against it by the second amended complaint in these consolidated actions is due within 10 days.
